Blocks of Flats Insurance Wording
Z0017 (07-15) Covea - Deacon

Insurance for Blocks of Flats

In return for payment of the premium shown in the schedule, **we** agree to insure **you**, subject to the terms and conditions contained in or endorsed on this **policy**, against loss or damage **you** sustain or legal liability **you** incur for accidents happening during the period shown in the schedule.

When drawing up this **policy**, **we** have relied on the information and statements that have been provided to **us** by **you**.

The insurance relates ONLY to those sections of the **policy** which are shown in the schedule as being included.

This policy is issued on behalf of Covea Insurance plc under the written authority which reference number is shown in the schedule.

About your insurer

Covea Insurance plc is a financially secure, well established UK insurer with a Standard and Poors rating of A and 1.1 million policyholders**.

Covea Insurance plc was formed in 2012 through the merger of Provident Insurance and MMA Insurance, two well established insurers with a combined experience of over 100 years in the UK insurance market.

Covea Insurance plc is part of the Covéa Group; a leading French Mutual Insurer with assets of €71bn, 10.7m members and customers and over 25,000 employees*.

*As at the end of 2010

** As at the end of 2011

Covea Insurance plc is a member of the Association of British Insurers and the Financial Ombudsman Service. Covea Insurance plc is authorised by the Prudential Regulation Authority and regulated by the Financial Conduct Authority and the Prudential Regulation Authority.

How to make a claim

To make a claim please contact the Deacon claims team:

Telephone:	01202 449611
Fax:	01202 449602
Email:	claims@deacon.co.uk

Staff are available during office hours and helpline staff are available at all other times.

You will need to quote **your policy** number that can be found on **your** schedule. **You** will be advised of what **you** need to do and what information will need to be provided.

In the event of a claim please also refer to the claims procedure included within the Claims Procedure and Conditions section of this **policy** wording.

Introduction

The **policy** schedule which specifies the operative sections is **your** evidence of insurance and may be required in the event of a claim. Please read the schedule and the **policy** and return it immediately if it is not in accordance with **your** requirements. If **you** decide within 14 days of receipt that **you** do not wish to accept the **policy**, return it and provided no claims have been made, **we** will refund the premium. The **policy** is designed for easy amendment, therefore should **you** request any change in cover, an updated schedule will be issued.

Provision against inflation is provided and the revised sums insured applicable at renewal will be advised on the renewal schedule forming part of the renewal notice.

Definitions

Wherever the following words or expressions are used in this **policy** they will have the specific meanings given below and will be shown in bold.

Excess

The amount shown in the schedule being the first part of each claim which **you** must pay.

Policy

Our contract of insurance with **you** providing insurance within the terms of this **policy** document. The statement of fact or proposal form (the basis of the contract), the **policy** schedule (specifying the sections covered) and any specifications and endorsements form part of the contract and must be read together with this **policy** document.

Money

Current legal tender, cheques, postal & money orders, postage stamps not forming part of a collection. Savings stamps, savings certificates and travellers cheques belonging to **You**.

Period of Insurance

The period as shown in the schedule.

Property/Property Insured

Building(s) and **Contents** situated at the risk address (es) shown in the schedule.

Insured/You/Your

The person(s), company or organisation named in the schedule (unless stated otherwise), together with any freeholders or leasehold owners and their mortgagees for their respective rights and interests.

Insurer/We/Our/Us

Covea Insurance plc.

Unoccupied

The **building(s)** is/are **unoccupied**:

Where the entire **building(s)** is not being lived in for more than 30 days.

Exclusions

These show what is not covered and appear in the **policy** document in italics.

Operation of cover

The **insured** having paid or agreed to pay the premium. **We** will provide insurance within the terms of this **policy** for those sections specified in the schedule in respect of events occurring during the **period of insurance**.

United Kingdom

Shall include the Channel Islands and the Isle of Man.

Definition of Building(s)

a) The block of flats, garages, domestic outbuildings, swimming pools, hard courts, yards, forecourts, car parks, roads, pavements, terraces, patios, drives and footpaths, walls, fences, gates, canopies, hedges, television aerials, satellite dishes, external lighting, lamp posts, fixed signs, communication aerials, street furniture, closed circuit television installations;

b) Paving and landscaping, garden machinery, garden furniture, plants and trees but only to the extent of your responsibility;

c) Septic tanks, cesspits, piping, ducting, wires, cables and associated control gear and accessories on the premises and extending to the public mains, but only to the extent of your responsibility;

d) Gymnasiums used by residents for domestic and leisure purposes only;

e) Landlords fixtures and fittings (including fitted carpets in the common parts) and tenants improvements;

all situated at the risk address (es) shown in the schedule.

Cover Definition

A The Building(s)		***Exclusions to Cover A***	
This insurance covers the **building(s)** for loss or damage directly caused by the following insured perils:		***We*** *will not pay for:*	
1	fire, explosion, lightning, earthquake.		
2	smoke.	*2*	*loss or damage due to any gradually operating cause.*
3	storm or flood.	*3* *3* *3*	*loss or damage caused by frost;* *loss or damage attributable solely to a change in the water table level;* *loss or damage caused by subsidence, heave or landslip.*
4	escape of water from water tanks, pipes or apparatus or fixed heating installations.	*4* *4*	*loss or damage to the appliance or installation which the water escapes from;* *loss or damage caused by subsidence, heave or landslip;*
5	freezing of water in tanks, apparatus or pipes.	*4/5*	*loss or damage caused by the action of chemicals on or the reaction of chemicals with any materials which form part of the* ***building(s)****.*
6	theft or attempted theft.	*6*	*loss or damage caused by* ***you*** *any member of* ***your*** *family any of* ***your*** *partners, directors or* ***employees*** *or any occupier to the flat in which they reside.*
7	riot, civil commotion, strikers or persons taking part in labour and political disturbances.	*7/8*	*loss or damage caused by* ***you*** *any member of* ***your*** *family or any of* ***your*** *partners directors or* ***employees*** *or any occupier to the flat in which they reside.*
8	malicious persons or vandals.		
9	leakage of oil from a fixed heating installation.	*9*	*loss or damage due to wear and tear or any gradually operating cause.*
10	impact by aircraft or other aerial devices or articles falling from them.		
11	impact by any road vehicle or animal or by goods falling from them.		
12	falling radio and television receiving aerials including satellite dishes, their fittings and masts.		
13	falling trees (in part or otherwise), telegraph poles or lighting standards.		

A The Building(s) continued		***We*** *will not pay for:*	
14	subsidence and/or heave of any part of the site on which the **building(s)** stands and/or landslip.	*14*	*in respect of each occurrence the first £1000 of any amount payable in respect of each block of flats or as shown in the schedule;*
		14	*loss or damage to garages, domestic outbuildings, swimming pools, hard courts, yards, forecourts, car parks, roads, pavements, terraces, patios, drives, footpaths, walls, fences, gates, or hedges unless the block of flats is also affected at the same time by the same event;*
		14	*loss or damage if any of the property on the site has to **your** reasonable knowledge previously suffered loss or damage by subsidence, heave or landslip unless disclosed by **you** and accepted by **us** in writing;*
		14	*loss or damage due to coastal or river erosion;*
		14	*loss or damage to solid floors caused by compaction or infill;*
		14	*loss or damage arising from faulty design, specification, workmanship or materials;*
		14	*loss or damage caused by or consisting of normal settlement, bedding down of new structures, the settlement or movement of made-up ground or shrinkage or by subsidence of newly made-up ground;*
		14	*loss or damage to the **building(s)** caused by the action of chemicals on or the reaction of chemicals with any materials which form part of the **building(s)**.*
15	accidental damage.	*15*	*loss or damage arising from wear and tear, settlement or shrinkage action of light, wet or dry rot, corrosion, pets, vermin, insects, fungus, infestation, damp, rust, atmospheric climatic or weather conditions or any gradually operating cause;*
		15	*loss or damage arising from faulty design, specification, workmanship or materials;*
		15	*loss or damage arising from any building work comprising of alterations, renovations, additions or repairs to the **building(s)**;*
		15	*loss or damage excluded elsewhere under this section.*

Extensions to Cover A	***We*** *will not pay for:*
Capital additions Alterations additions and improvements to **building(s)**, at the risk address noted on the schedule, up to a maximum £2,500,000 or 10% of the sum(s) insured on the **building(s)** at any one risk address whichever is the lesser. **You** are required to give **us** particulars of such additions or alterations as soon as practicable (and within 30 days) and arrange specific insurance on them retrospectively from the operative date when **your** insurable interest commenced. When such specific insurance is effected the cover under this extension is fully reinstated.	
Additional Expenses Additional expenses **you** have to pay and which **we** have agreed in writing for:	
(i) architects', surveyors', consulting engineers' and legal fees;	*(i) fees **you** incur when preparing any claim.*
(ii) the cost of removing debris and making safe the **building(s)**;	
(iii) costs **you** have to pay in order to comply with any Government, local authority or European Community legislation requirements.	*(iii) any cost resulting from Government, Local Authority or European Community requirements that have been served on **you** before the loss or damage.*

This Section of the insurance also covers

B Loss of rent, cost of alternative accommodation and prevention of access

(i) If any part of the **building(s)** is damaged and rendered uninhabitable by any insured peril under this section or under Extension C below **we** will pay for loss of rent due to **you** and which **you** are unable to recover during the period necessary to restore such part to a habitable condition.

(ii) If the **building(s)** is insured on behalf of individual owners or lessees and any flat is damaged and made uninhabitable by any insured peril under this section or under Extension C below **we** will pay the reasonable additional expenses necessarily incurred by such owner or lessee for alternative accommodation substantially the same as but not superior to the existing accommodation, including accommodation necessary for resident's pets, during the period necessary to restore the flat to a habitable condition.

(iii) In the event of loss or damage caused by an insured peril under this section or under Extension C below in the vicinity of the **building(s),** which hinders or prevents access to use or habitation of the **building(s)** or any flat within the **building** by individual owners or lessees, **we** will pay the reasonable additional expenses incurred, with **our** written consent, by such owner or lessee for alternative accommodation including those required for resident's pets during the period when access, use or habitation is hindered or prevented.

Limit of liability – the maximum amount payable under Cover B is as shown in the schedule in respect of each occurrence.

The maximum amount payable in respect of each damaged flat will be based on its proportionate share of the total management charges and/or ground rent for the **building(s).**

C Damage to services

Accidental damage by external means to:

(i) cables or underground pipes providing services to or from the **building(s)**;

(ii) septic tanks and drain inspection covers for which the **insured** owner lessee or tenant of any flat forming part of the **building(s)** is legally responsible.

D Breakage of fixed glass and sanitary fixtures

Accidental breakage of fixed glass forming part of the **building(s)** including glass in solar panel units and fixed baths, shower trays, shower screens, bidets, wash basins, splash backs, pedestals, sinks, lavatory pans and cisterns (and their fixtures and fittings) in the **building(s)** including the cost of temporary boarding up, where necessary, pending replacement.

For the purposes of Cover D the term glass includes polycarbonate and other synthetic substitutes.

E Trace and access

In the event of damage resulting from escape of water **we** will pay the expenses necessarily and reasonably incurred in locating the source of the damage effecting repairs and making good.

Limit of liability is as shown in the schedule in respect of any one claim.

We *will not pay for:*

(iii) loss arising from obstruction by snow, rain or flood water.

This Section of the insurance also covers	*We will not pay for:*
F Replacement of Locks Expenses necessarily and reasonably incurred by **you** in the replacement of locks in respect of external doors and windows for which **you** are responsible and which are necessary to maintain the security of the premises following: (i) the theft of keys to the **building(s)**. (ii) with **our** written consent the accidental loss of keys to the **building(s)**. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance**.	
G Damage caused by emergency services Damage caused to the **building(s)** including paths and gardens forming part of the **building(s)** by the emergency services in response to an insured peril. Limit of liability is as shown in the schedule in respect of any one claim.	
H Landlords gardening equipment Accidental damage to landlords gardening equipment. Limit of liability is as shown in the schedule in respect of any one claim.	*H theft unless there is evidence of violent and forcible entry into or exiting from the **building(s)**.* *H theft unless stored in a fully enclosed **building(s)** having walls of brick, stone, or concrete and which is secured by a close shackle padlock and suitable locking bar breakage whilst in use.*
I Loss of metered water, gas and electricity Loss of metered water, gas and electricity supplies up to an amount not exceeding the amount shown in the schedule in respect of any one claim, following loss or damage that is covered under this section.	
J Money Loss of **money** belonging to the person(s) named in the schedule for which they are responsible within the **building(s)** or whilst being transported. Limit of liability is as shown in the schedule in respect of any one claim.	*J any loss arising from fraud or dishonesty by the persons named in the schedule or members of their family or their partners, directors and **employees** or any resident.* *J any shortage due to mistakes or neglect.* *J any loss in value.* *J theft unless involving evidence of violent and forcible entry into or exiting from the **building(s)**.*
K Tenant improvements **We** will insure **you** against damage by insured perils (1) to (13) specified in Section 1 - Cover A to any fixtures and fittings installed by **your** tenants at the **building(s)** and which remain **your** property.	
L Removal of wasps or bees nests **We** will pay the cost of removing any wasps or bees nests from the **building(s)**. Limit of liability is as shown in the schedule in respect of any one claim.	*L the cost of removing any nests already in the **building(s)** before **your** cover starts.*
M Transfer of interest If at the time of damage to the **building(s)** **you** have contracted to sell **your** interest in them the contracting purchaser will have the benefit of this **policy** provided the purchase is subsequently completed and the **building(s)** are not insured by any other insurance **policy**.	
N Legal fees for removal of squatters Legal fees, up to the sum insured shown in the schedule which **you** incur, with **our** written consent, to repossess the **building(s)** if squatters are living in it.	
O Tree Felling and Lopping The cost of removing or lopping trees which are an immediate threat to the safety of life or the building(s). Limit of liability is as shown in the schedule in respect of any one claim.	

This Section of the insurance also covers	*We will not pay for:*
P Fly Tipping With **our** written consent the reasonable costs of cleaning and removal of any property deposited illegally within the boundaries of the **building(s)**. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance.**	
Q Re-letting Costs The costs necessarily and reasonably incurred by **you** in re-letting the **building(s)** entirely due to loss or damage that is covered under this section. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance**.	
R Drains and Gutters With **our** written consent the costs and expenses **you** incur in cleaning and/or clearing drains and/or sewers and/or gutters for which you are solely responsible following loss or damage that is covered under this section. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance**.	
S Non Damage Prevention of Access In the event of access to or use of the **building(s)** being hindered or prevented as a result of the actions or advice of the Government, a Local Authority or other statutory body due to an emergency arising which is likely to endanger life or property with **our** written consent **we** will pay the reasonable additional expenses incurred, by **you** for alternative accommodation including those required for resident's pets during the period when access, use or habitation is hindered or prevented. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance.**	*S any claim due to damage to the **building(s).*** *S any claim where the prevention or hindrance of access or use is less than 48 hours in duration.*
T Public Utilities In the event of loss or damage caused by an insured peril to property at any; i) generating station or sub-station of a private or public electricity supply undertaking ii) land-based premises of a private or public gas supply undertaking or any national gas producer linked directly to them iii) waterworks and pumping stations of a public or private water supply undertaking iv) land-based premises of any public or private telecommunications undertaking from which the **building(s)** obtain electricity, gas, water or telecommunication services with **our** written consent **we** will pay for loss of rent due to **you** and which **you** are unable to recover &/or the reasonable additional expenses incurred by **you** for alternative accommodation including those required for resident's pets during the period when access, use or habitation is hindered or prevented. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance**.	*T any claim where the access, use or habitation is hindered or prevented for less than 48 hours in duration.*

This Section of the insurance also covers		*We will not pay for:*	
U	**Tree Removal** With **our** written consent **We** will pay the reasonable additional expenses incurred by **you** in a fallen tree being removed from the premises if this is caused by an insured peril. Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance**.	*U*	*any claim where the additional expense incurred could have been reasonably foreseen.*
V1	**Loss prevention expenses** With **our** written consent **We** will pay the reasonable expenses **you** incur in taking reasonable but exceptional measures to avoid or mitigate a valid claim under this Section. Provided that the terms and conditions of this Section will apply as if damage had occurred Limit of liability is as shown in the schedule in respect of any one claim and in total in any one **period of insurance.**	*V1*	*any claim where the expense incurred could have been reasonably foreseen.*
V2	**Loss prevention expenses – Emergency Services** With **our** written consent **We** will pay the expenses incurred up to £5,000 for any one claim following damage caused by the emergency services or persons acting under their control in securing access to the buildings as a result of their concern for the welfare of a resident	*V2*	any claim where the expenses incurred are caused in the course of a police criminal investigation

Limit of Insurance

The most **we** will pay for any loss or damage, including fees and costs, and tenants improvements defined in Cover K, is the sum insured as shown in the schedule less any applicable **excess**.

W Public Liability

Definitions

Insured

In this section the term **insured** means the **insured** named in the schedule. In addition those individuals bodies or organisations named below are also deemed to be the **insured** provided they are not entitled to indemnity from any other source and they observe fulfil and obey the terms and conditions of the **policy** as if they were the **insured**:

a) the owner or lessee of any flat;

b) any principal in respect of liability arising out of the performance by **you** of any agreement entered into by **you** with the principal to the extent required by such agreement;

c) the management company owned by the renting tenants and/or leasehold or freehold occupiers;

d) the residents association;

e) any director partner or **employee** at the request of the **insured** named in the schedule who will be considered to have been insured separately in the terms of this section.

Injury

Bodily **injury** death shock illness or disease.

Cover

We will indemnify the **insured** for any amounts they become legally liable to pay as damages for:

- **injury**;
- damage to property;

caused by an accident happening during the **period of insurance**:

a) in or about the **building(s)**;
b) elsewhere in the United Kingdom during temporary visits on behalf of the **insured** by any director partner or **employee** of the **insured**;

c) in connection with any **building(s)** (including its garages and domestic outbuildings) formerly owned or leased by the Insured named in the schedule and occupied solely for private residential purposes or any private dwelling previously owned or leased by the owner or lessee of any flat and incurred by reason of Section 3 of the Defective Premises Act 1972 or Section 5 of the Defective Premises (Northern Ireland) Order 1975.

In the event of the **building(s)** section of this **policy** being cancelled or expiring the indemnity will continue for a period of 7 years in respect of any **building(s)** insured by this section prior to such cancellation or expiry.

*W for **injury** to any:*
*(i) person under a contract of service or apprenticeship with **you**;*
(ii) labour master or labour only subcontractor or person supplied by them;
(iii) self employed person for labour only;
(iv) person under a work experience or youth training scheme;
*(v) person hired or borrowed by **you** from another employer;*
(vi) person arising directly or indirectly from any communicable disease condition or virus.

*W for damage to property belonging to or held in trust by **you** or in **your** custody or control or (other than in respect of **employees** effects) in the trust custody or control of an **employee.***

*W for liability arising out of the ownership possession or use by or on behalf of the **insured** of any:*
(i) mechanically propelled vehicle (other than a pedestrian controlled garden implement or other motorised gardening equipment which is unlicensed for road use and for which no Certificate of Motor Insurance is required);
(ii) caravan aircraft watercraft or hovercraft;
(iii) animal

*W for liability assumed by **you** under any agreement unless such liability would have attached to **you** had the agreement not existed.*

W for liability arising directly or indirectly out of the execution of structural alterations, structural repairs (other than the normal upkeep and making good) or redevelopment of the premises.

W for liability of any resident incurred solely as occupier (not as owner) of the flat in which they reside.

W for liability arising out of any kind of pollution and/or contamination other than:
*(i) caused by a sudden, identifiable, unintended unexpected and unforeseen accident which happens in its entirety at a specific moment in time during the **period of insurance** in or about the **building(s)** named in the schedule; and*
*(ii) reported to **us** not later than 30 days from the end of the **period of insurance**;*

W in which case all such pollution and/or contamination arising out of such accident shall be deemed to have happened at the time of such accident.

W for fines and penalties as a result of pollution and/or contamination.

*W for liability arising directly or indirectly out of any employment, profession, occupation or business other than the business of the **building(s)** of the block of flats.*

W if indemnity is provided under any other insurance.

W for liability arising out of any work undertaken and/or visit offshore.

Corporate Manslaughter and Corporate Homicide Act 2007 Extension

Cover under this Section 1 W – Public Liability extends to indemnify **you** in respect of legal costs and expenses incurred with **our** prior written consent in connection with the defence of any criminal proceedings (including any appeal against conviction arising from any such proceedings) brought in respect of a charge and or investigations connected with a charge of corporate manslaughter or corporate homicide under the Corporate Manslaughter and Corporate Homicide Act 2007 or any equivalent legislation in the Channel Islands or the Isle of Man committed or alleged to have been committed during the **period of insurance** by **you** in connection with the business described in the schedule.

Provided always that:

a) **our** liability under this endorsement shall not exceed £5,000,000 in any one **period of insurance** or the Limit of Indemnity stated in the schedule whichever is the lesser. This limit will form part of and not be in addition to the Limit of Indemnity stated in the schedule

b) this endorsement shall apply only to proceedings brought in Great Britain, Northern Ireland, the Channel Islands or the Isle of Man

c) **we** must consent in writing to the appointment of any solicitor or counsel who are to act for and on behalf of **you**

d) **you** shall give to **us** immediate notice of any summons or other process served upon **you** which may give rise to proceedings under this endorsement

e) in relation to any appeal counsel has advised there are strong prospects of such appeal succeeding

f) **we** shall be under no liability:

   i) in respect of any prosecutions

   ii) unless they relate to death to any person other than an **employee** happening in connection with the business described in the schedule

   iii) where **you** have committed any deliberate or intentional criminal act giving rise to a corporate manslaughter or corporate homicide charge

   iv) in respect of fines or penalties of any kind

   v) in respect of the defence of any criminal proceedings brought or in an appeal against conviction arising from such proceedings in respect of a breach of:

      1) the Health and Safety at Work Act 1974 or the Health and Safety at Work Act (Northern Ireland) Order 1978 or any regulations made thereunder

      2) the Food Safety Act 1990 or any regulations made thereunder

      3) the Consumer Protection Act 1987or any regulations made thereunder

   vi) where indemnity for defence costs is available from any other source or is provided by any other insurance or where but for the existence of this endorsement to indemnity would have been provided by such other source or insurance

   vii) in respect of any remedial or publicity orders or any steps required to be taken by such orders

g) where **we** have already indemnified **you** in respect of legal costs or expenses incurred in the defence of any criminal proceedings arising out of the same cause or occurrence which gave rise to the charge of and or investigation connected with corporate manslaughter or corporate homicide under another section of the policy the amount paid under that section will be taken into account in arriving at **our** liability payable under this endorsement.

Data Protection Act Extension

Cover under this Section 1 W – Public Liability extends to indemnify **you** in respect of legal costs and expenses incurred with **our** prior written consent in connection with due to damage or distress under Section 22 or 23 of the Data Protection Act 1984 caused in connection with the business described in the schedule.

We will not indemnify **you**:

a) if **you** have failed to register or have ceased to be registered under the Data Protection Act 1984 or have failed to comply with or are in contravention of a notice issues under sections 10 or 12 of the Act
b) for damage or distress which is the intentional result of any deliberate act of omission
c) costs and expenses of rectifying, re-writing or erasing data

Extended Indemnity Extension

Cover under this Section 1 W – Public Liability extends to indemnify **you** for costs and expenses which **you** and no other party incur for a pecuniary loss, cost or expense incurred by any party other than **you** or your officers or employees as a direct result of:

a) sudden, identifiable and unexpected escape or discharge of any substance or gas from any premises
b) stoppage of or interference with pedestrian, vehicular, rail, air or waterborne traffic
c) nuisance, trespass or interference with any right of air, light, water or way occurring within the territorial limits and caused in connection with the business other than by goods.

Tenants' Liability Extension

Cover under this Section 1 W – Public Liability extends to indemnify **you** for costs and expenses with **our** prior written consent with regards to any tenant of furnished accommodation let by **you** in respect of the liability of the tenant as occupier of such accommodation. **We** will not pay more than the Limit of Liability stated in the schedule in respect of any one claim.

Limit of Liability

We will not pay:

a) in respect of pollution and/or contamination more than the limit shown in the schedule in all;

b) in respect of liability directly or indirectly caused by contributed to by or arising from asbestos more than £2,000,000 for any one accident or series of accidents arising out of one event plus costs and expenses that **we** have agreed in writing;

c) in respect of any other liability covered under this section more than the limit shown in the schedule for any one accident or series of accidents arising out of any one event plus costs and expenses that **we** have agreed in writing.

Section 2 – Contents of the common parts

Definition of Contents	***What is not covered***
Furniture, carpets, furnishings and all other property belonging to the person(s) named in the schedule or for which such person(s) are legally responsible including the costs and expenses necessarily incurred in the removal of debris of the portions of the property damaged by any insured peril up to the amount shown in the schedule. **Our** limit of liability is £1,000 for any one article in respect of televisions, radios, recording and audio equipment, clocks, pictures, works of art or curios unless stated otherwise in the schedule.	*landlords fixtures and fittings.* *articles of gold, silver or other precious metal, jewellery or furs, clothing and personal effects, **money,** credit cards, stamp, coin and other collections, certificates, cheques, securities, deeds, bonds, or documents of any kind.* *fitted carpets in the common parts.* *motor vehicles, caravans, trailers, watercraft, hovercraft, aircraft cycles and their accompanying accessories, any living creatures.* *accidental damage occurring in any part of the **building(s)** used for trade or business purposes other than any occupation described in the schedule.* *property in the open.* *property insured by any other **policy.***

Cover Definition

A The Contents	***Exclusions to Cover A***
This insurance covers the **contents** in the common parts within the **building(s)**, at the risk address named in the schedule, for loss or damage directly caused by the following insured perils:	***We** will not pay for:*

1	fire, explosion, lightning, earthquake.		
2	smoke.	*2*	*loss or damage due to any gradually operating cause.*
3	storm or flood.	*3*	*loss or damage attributable solely to a change in the water table level.*
4	escape of water from water tanks, pipes or apparatus or fixed heating installations.	*4*	*loss or damage to the appliance or installation which the water escapes from.*
5	theft or attempted theft.	*5* *5* *5* *5*	*theft by deception unless deception is used solely as a means to gain entry;* *theft from any garage or domestic outbuilding unless there is evidence of violent and forcible entry to or exit from the **building(s);*** *loss or damage caused by **you** any member of **your** family or any of **your** directors or partners;* *loss or damage caused by any occupier to the **contents** of the flat in which they reside.*
6	riot, civil commotion, strikers or persons taking part in labour and political disturbances.		
7	malicious persons or vandals.	*7* *7*	*loss or damage caused by **you** any member of **your** family or any of **your** partners directors or **employees** or any occupier to the flat in which they reside;* *loss or damage caused by any occupier to the **contents** of the flat in which they reside.*
8	leakage of oil from a fixed heating installation.	*8*	*loss or damage due to wear and tear or any gradually operating cause.*
9	impact by aircraft or other aerial devices or articles falling from them.		
10	impact by any road vehicle or animal or by goods falling from them.		
11	falling radio and television receiving aerials including satellite dishes, their fittings and masts.		

A The Contents continued		***We*** *will not pay for:*	
12	falling trees (in part or otherwise), telegraph poles or lighting standards.		
13	subsidence and/or heave of any part of the site on which the **building(s)** stands and/or landslip.	*13*	*loss or damage due to coastal or river erosion;*
		13	*loss or damage following damage to solid floors cause by compaction of infill;*
		13	*loss or damage arising from faulty design specification, workmanship or materials;*
		13	*loss or damage if the property on the site has to **your** reasonable knowledge previously suffered loss or damage by subsidence, heave or landslip unless disclosed by **you** and accepted by **us** in writing;*
		13	*loss or damage following loss or damage to the **building(s)** caused by the action of chemicals with any materials which form part of the **building(s)**.*
14	accidental damage.	*14*	*loss or damage, arising from wear and tear, settlement or shrinkage, action of light, wet or dry rot, corrosion, pets, vermin, insects, fungus, infestation, damp, rust, atmospheric, climatic or weather conditions or any gradually operating cause, the process of cleaning, repairing or restoring any article or mechanical breakdown or consequential loss;*
		14	*loss or damage arising from the use of defective materials, defective design or faulty workmanship;*
		14	*loss or damage arising from any building work comprising of alterations, renovations, additions and repairs to the **building(s)**;*
		14	*loss or damage occurring in any part of the **building(s)** used for trade or business purposes other than the business of the block of flats.*

This Section of the insurance also covers		***We*** *will not pay for:*	
B	**Damage to mirrors and glass** Accidental damage occurring in the **building(s)** to mirrors, plate glass tops to furniture, fixed glass in furniture and ceramic glass in cooker hobs or any polycarbonate or synthetic substitute.	*B*	*loss or damage to glass oven doors or ceramic glass in cooker hobs or any polycarbonate or synthetic substitute which is covered by any other **policy.***
C	**Contents in the garden** Damage to garden furniture belonging to the person(s) named in the schedule by any of the insured perils 1 to 12 of section 2, limit of liability as shown in the schedule in respect of any one claim.	*C*	*loss or damage caused by storm flood or frost.*
D	**Contents temporarily removed for cleaning renovating or repair** Damage to **contents** caused by any of the insured perils 1 to 11 of section 2 while they are temporarily elsewhere in the United Kingdom for the purposes of cleaning, renovation or repair. Subject to the limit of liability as shown in the schedule in respect of any one claim.	*D*	*loss or damage caused by theft or attempted theft unless there is evidence of forcible and violent entry or exit to the **building(s)**.*
		D	***money**.*
		D	*loss or damage while the **contents** are in storage.*
		D	*loss or damage caused by storm flood or frost to **contents** not within a **building(s)**.*
E	**Residential Management Committee Contents** The **contents** belonging to any Residential Management Committee or Company named in the **policy** schedule in any residential unit are insured against damage by any of the insured perils 1 to 13 of section 2. Subject to the limit of liability as shown in the schedule in respect of any one claim.	*E*	*loss or damage to landlords fixtures and fittings.* *the first £50 or the excess as shown in the schedule if greater of any damage arising out of theft or attempted theft unless there is evidence of forcible and violent entry or exit from the **building(s)**.*
		E	*loss or damage where possession is gained by fraud trick or false pretence.*
F	**Televisions Radios Recording & Audio Equipment** Damage to televisions, radios, recording and audio equipment in communal areas subject to a limit of £1000 for any one article.	*F*	*theft unless there is evidence of forcible and violent entry to or exit from the **building(s)**.*
		F	*accidental damage.*

Limit of Insurance

We will not pay more than the sum insured for the **contents** of common parts shown in the schedule including E Contents of Residential Units less any applicable **excess.**

Claims Settlement

In the event of damage **we** will provide payment or at **our** option indemnify **you** by reinstatement replacement or repair in accordance with the basis of settlement below.

In settling claims for damage **we** will not make a reduction for wear and tear and depreciation except where the **building(s)** or **contents** have not been kept in a good state of repair. A deduction for wear and tear and depreciation will be made in respect of property not belonging to **you** or **your** domestic servants unless **you** or they are legally responsible for the cost of replacement as new under the terms of a contract or agreement.

In calculating the most **we** will pay for any loss or damage adjustments shall be made in a accordance with the following clause:

Reinstatement (Day One Basis) Clause

1) Subject to the Special Conditions set out below, the basis on which the amount payable for **building(s)** and **contents** is to be calculated will be the reinstatement of the **property** lost or damaged.

For this purpose "reinstatement" means:

a) the rebuilding or replacement of **property** lost or damaged which, provided **our** liability is not increased, may be carried out
   i) in any manner suitable to **your** requirements
   ii) on another site

b) the repair or restoration of **property** damaged in either case to a condition equivalent to, or substantially the same as, but no better or more extensive than its condition when new.

2) The Declared Value (shown in brackets next to the sum insured on the Schedule), having been stated by **you**, has been used to calculate the premium.

Declared Value means the assessment made by **you** of the cost of reinstatement of **property insured** arrived at in accordance with paragraph 1 a) at the level of costs applying at inception of the period of insurance (ignoring inflationary factors which may subsequently operate), together with, to the extent that cover provides, due allowance for:

a) any additional cost of reinstatement to comply with public authorities regulations, bye-laws or stipulations
b) Professional Fees
c) Removal of Debris costs.

Special Conditions

a) At inception of each **period of insurance**, the **insured** shall notify the **insurer** of the Declared Value of **property insured**. In the absence of such declaration the last amount declared by the **insured** will be taken as the Declared Value for the new **period of insurance**, appropriately adjusted by Index Linking.

b) If at the time of damage the Declared Value of the **property insured** is less than the cost of reinstatement (as defined in paragraph 1 a) above at inception of the **period of insurance**, the amount payable by the **insurer** will be proportionately reduced.

c) The **insurer's** liability for the repair or restoration of **property** damaged in part only, shall not exceed the amount which would have been payable if such **property** had been wholly destroyed.

d) No payment beyond the amount the **insurer** would have paid in the absence of this clause will be made
   i) unless reinstatement commences and proceeds without unreasonable delay
   ii) until the cost of reinstatement has actually been incurred
   iii) where **property insured** at the time of damage is covered by any other insurance effected by the **insured**, or on behalf of the **insured**, which is not on the same basis of reinstatement.

e) All the terms and conditions of this section and of the **policy** shall apply
   i) to any claim payable under the provisions of this clause, other than where they are expressly varied by the terms of this clause
   ii) where claims are payable as if this clause had not been incorporated, except that sums insured will be limited to 125% of Declared Values.

Average Clause

The Sums Insured by

a) any items for **building(s)** or **contents** subject to the Reinstatement (Day One Basis) Clause are declared to be separately subject to Average as described in Special Condition b) of such clause

b) any other items of **property insured** (other than any sum insured applying solely to Rent, Fees, Removal of Debris) are declared to be separately subject to Average. This means if at the time of damage the sum insured for any item is less than the value of the item covered by such sum insured, the amount payable by **us** will be proportionately reduced.

Your Sum Insured

We will not reduce the sum(s) insured after **we** have paid a claim as long as **you** agree to carry out Our recommendations to prevent further loss or damage.

Index Linking

The sum(s) insured will be adjusted at monthly intervals during the **period of insurance** by a percentage determined by **us** based on nationally published indices or a suitable alternative index. The revised sum(s) insured and renewal premium will be shown on the renewal notice issued to **you** at each renewal date of **your policy.**

Non-Invalidation

The **policy** will not be invalidated by any act omission alteration which increases the risk of damage beyond **your** control or which **you** could not reasonably have been held to have been aware of but **you** must notify **us** upon becoming aware of any such circumstances and pay an additional premium if required.

Mortgagees and Lessors

Any increase in the risk of damage due to any act or neglect of any Mortgagor, Leaseholder, Lessee or Occupier of any **building(s)** will not prejudice the interest of any Mortgagee, Freeholder or Lessor provided the increase in risk is without their prior knowledge or authority and **we** are notified immediately they become aware of the increase in risk and pay any additional premium

Workmen's Clause

Workmen are allowed to work in the **building(s)** for the purpose of making minor additions and alterations, repairs, decorations and general maintenance without prejudice to this insurance.

General Interest Clause

The interest of other parties in this insurance is noted it being understood that in the event of damage the nature and extent of other such interest will be disclosed by the **insured**.

Building(s) that are Unoccupied

It is a condition precedent to the liability under section 1 – **building(s)** that where the **building(s)** are **unoccupied** as defined **you** must make sure that:

1) All services are turned off at the mains other than for maintaining security, fire alarms and central heating systems;

2) The mains water system to be drained except where necessary to maintain a temperature of 5 degrees Celsius during the period between 1st October and 1st April inclusive;

3) **You** or **your** agent inspects the property at least once every 14 days and removes any accumulations of combustible materials such as junk mail during the inspection. Records of inspections must be kept and **we** must be able to inspect **your** records at any time;

4) The property is secured against unlawful entry by closing all doors and windows and setting all security locking mechanisms and by setting any alarm systems in operation.

If the above condition is not complied with all liabilities for claims arising when the **building(s)** are **unoccupied** will be excluded.

Flat Roof Condition

In relation to any claim for loss or damage resulting from failure of a flat roof **you** will lose your right to indemnity for payment of that claim if **you** have failed to fulfil the following:

Where more than 20% of the total roof area is flat and is constructed of asphalt, bitumen or felt on timber it is a condition of the **policy** that all flat roof sections over seven years old must be inspected and tested at least once every two year period by a qualified and independent building/roofing contractor and a certificate issued confirming the roof section is in a sound weather proof condition.

Sonic Bangs

We *will not pay for loss or damage directly occasioned by pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds.*

Properties that incorporate both business and domestic use

Notwithstanding anything contained herein to the contrary ***we*** *will exclude:*

1) *Shop fronts in the* ***building(s)*** *and glass therein;*

2) *Any claim for liability arising from the trade or profession or business;*

3) *Any claim for loss of rent arising from any part of the home that is used for anything other than domestic accommodation;*

4) *Any claim for non-business* ***contents*** *in the non-domestic part of the* ***building(s)****;*

5) *Any claim for business* ***contents****;*

6) *The first £250 of any claim in respect of the business premises or the excess as stated in the schedule whichever is greater.*

Asbestos

Any liability of whatsoever nature arising out of mining processing manufacturing removing disposing or storing of asbestos or products made entirely or mainly of asbestos.

This exclusion shall not apply in respect of such removal or disposal provided that:

1) *Such activity does not form part of* ***your*** *usual business or contract and*

2) *the discovery of asbestos by* ***you*** *is unintentional and accidental and*

3) *upon discovery of asbestos or products made of entirely or mainly of asbestos all work immediately stops and*

4) *an HSE licensed asbestos removal contractor is employed if legally required*

   a) *to make safe the area in which the discovery is made as soon as practicable*

   b) *that provides the limits of indemnity at no less than those stated in the* ***policy*** *schedule*

   c) *that does not exclude the work to be carried out.*

Terrorism – biological and chemical contamination exclusion

We *will not pay for:*

1) *loss destruction of or damage to any property whatsoever or any loss or expenses whatsoever resulting or arising there from or any consequential loss;*

2) *any legal liability of whatsoever nature;*

3) *death or* ***injury*** *to any person;*

directly or indirectly caused by or contributed to by or arising from biological or chemical contamination due to or arising from:

   a) *terrorism and/or;*

   b) *steps taken to prevent suppress control or reduce the consequences of any actual attempted threatened suspected or perceived terrorism.*

For the purposes of this exclusion "terrorism" means the act(s) of any person(s) or organisation(s) involving:

   i) *the causing occasioning or threatening of harm of whatever nature and by whatever means;*

   ii) *putting the public or any section of the public in fear;*

in circumstances in which it is reasonable to conclude that the purpose(s) of the person(s) or organisation(s) concerned are wholly or partly of a political religious ideological or similar nature.

Terrorism exclusion

Notwithstanding any provision to the contrary within this insurance or any endorsement thereto it is agreed that this insurance excludes loss, damage, cost and expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

For the purpose of this endorsement an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This endorsement also excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

*If the **Insurer** alleges that by reason of this exclusion, any loss, damage, cost or expense is not covered by this insurance the burden of proving the contrary shall be upon the **Insured**.*

In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

This exclusion does not apply in respect of residential property houses and blocks of flats and other dwellings insured in the name of a private individual.

Only if the Terrorism Extension is shown as included in the policy schedule notwithstanding anything stated herein to the contrary the following Exclusions applicable to Sections 1 and 2 do not apply:

Terrorism – biological and chemical contamination exclusion
Terrorism exclusion

and this insurance, in consideration of the payment of an additional premium and its Insurance Premium Tax, is extended for the period of insurance stated in the schedule to include loss or damage to the property insured and business interruption resulting therefrom insofar and to the extent that it is insured in the United Kingdom other than Northern Ireland (meaning England and Wales and Scotland but not the territorial seas adjacent thereto as defined by the Territorial Sea Act 1987 and not the Isle of Man nor the Channel Islands) caused by an Act of Terrorism certified as such by Her Majesty's Government or HM Treasury or any successor or other relevant authority.

For the purpose of this extension an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This extension also covers loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

Provided always that the Terrorism Insurance provided under this extension is subject to all the terms and conditions of this insurance except as expressly varied hereby and in addition subject to the following exclusions:

1) **Radioactive Contamination and Nuclear Assemblies Clause**

We will not pay for loss or destruction of or damage to any property whatsoever, or any loss or expenses whatsoever resulting or arising therefrom or any consequential loss directly or indirectly caused by or contributed to by or arising from:-

a) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel,

b) the radioactive, toxic, explosive or other hazardous properties of any nuclear assembly or nuclear component thereof.

2) **Biological and Chemical Contamination Exclusion**

We will not pay for loss or destruction of or damage to any property whatsoever, or any loss or expenses whatsoever resulting or arising therefrom or any consequential loss directly or indirectly caused by or contributed to by or arising from biological or chemical contamination due to or arising from:-

a) terrorism; and/or

b) steps taken to prevent, suppress, control or reduce the consequences of any actual, attempted, threatened, suspected or perceived terrorism.

However 1 and 2 above only apply in respect of residential property, houses and blocks of flats and other dwellings insured in the name of a private individual.

3) **War Exclusion**

We will not pay for any loss or damage or liability directly or indirectly occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power.

4) **Digital and /or Cyber Risks Exclusion**

We will not pay for any loss whatsoever directly or indirectly caused by or contributed to by or arising from or occasioned by or resulting from damage to any computer or other equipment or component or system or item which processes, stores, transmits or receives data or any part thereof whether tangible or intangible (including but without limitation any information or programs or software) and whether the property of the **insured** or not, where such damage is caused by **Virus or Similar Mechanism** or **Hacking** or **Denial of Service Attack** or **Phishing**;

Or

Consequential loss directly or indirectly caused by or arising from **Virus or Similar Mechanism** or **Hacking** or **Denial of Service Attack** or **Phishing**.

Wherever the words "**Virus or Similar Mechanism**" or "**Hacking**" or "**Denial of Service Attack**" or "**Phishing"** appear they shall have the following meanings:

Virus or Similar Mechanism

Virus or Similar Mechanism means program code, programming instruction or any set of instructions intentionally constructed with the ability to damage, interfere with or otherwise adversely affect computer programs, data files or operations, whether involving self-replication or not. The definition of Virus or Similar Mechanism includes but is not limited to Trojan horses worms and logic bombs.

Hacking

Hacking means unauthorised access to any computer or other equipment or component or system or item which processes, stores or retrieves data, whether the property of the **insured** or not.

Denial of Service Attack

Denial of Service Attack means any actions or instructions constructed or generated with the ability to damage, interfere with or otherwise affect the availability of networks, network services, network connectivity or information systems. Denial of Service Attacks include, but are not limited to the generation of excess traffic into network addresses, the exploitation of system or network weaknesses and the generation of excess or non-genuine traffic between and amongst networks.

Phishing

Any access or attempted access to data or information made by means of misrepresentation or deception.

and provided that **our** liability in respect of all losses arising out of any one occurrence and in the aggregate in any one period of insurance shall not exceed the limits as otherwise specified in this insurance.

Irrespective of the currency in which the insurance is expressed, the limit of liability and the premium for the insurance affected by this extension will be determined in sterling.

Special Condition

Any Long Term Agreement / Undertaking to which this insurance is subject shall not apply to the Terrorism insurance provided under this extension.

Definitions

Insured

In this section the term **insured** means the **insured** named in the schedule. In addition those individuals bodies or organisations named below are also deemed to be the **insured** provided they are not entitled to indemnity from any other source and they are also subject to the terms of this **policy** as far as they can apply:

a) the owner or lessee of any flat;

b) any principal in respect of liability arising out of the performance by **you** of any agreement entered into by **you** with the principal to the extent required by such agreement;

c) the management company owned by the renting tenants and/or leasehold or freehold occupiers;

d) the residents association;

e) any director, partner or **employee** at the request of the **insured** named in the schedule who will be considered to have been insured separately in the terms of this section.

Employee

Any:

1) person under a contract of service or apprenticeship with the insured;

2) labour master or labour only subcontractor or person supplied by them;

3) self employed person for labour only;

4) person under work experience or youth training schemes;

5) person hired or borrowed by the insured from another employer.

Injury

Bodily **injury,** death, shock, illness or disease.

Cover

We will indemnify the **insured** for amounts they become legally liable to pay including costs and expenses which **we** have agreed in writing for **injury** caused by an accident happening during the **period of insurance** to any **employee** arising out of and in the course of their employment by the **insured**, only in connection with the **building(s)** the subject of this **policy**, anywhere in the United Kingdom.

We *will not provide indemnity*

for liability in respect of ***injury*** *arising directly or indirectly:*

a) from any mechanically propelled vehicle where cover or security is required under any Road Traffic Act legislations;

b) out of any work undertaken and/or visit offshore.

Corporate Manslaughter and Corporate Homicide Act 2007 Extension

Cover under this Section extends to indemnify **you** in respect of legal costs and expenses incurred with **our** prior written consent in connection with the defence of any criminal proceedings (including any appeal against conviction arising from any such proceedings) brought in respect of a charge and or investigations connected with a charge of corporate manslaughter or corporate homicide under the Corporate Manslaughter and Corporate Homicide Act 2007 or any equivalent legislation in the Isle of Man or the Channel Islands committed or alleged to have been committed during the **period of insurance** by **you** in connection with the business described in the schedule.

Provided always that:

a) **our** liability under this endorsement shall not exceed £5,000,000 in any one **period of insurance**. This limit will form part of and not be in addition to the limit of indemnity stated in the schedule

b) this endorsement shall only apply to proceedings brought in Great Britain, Northern Ireland, the Isle of Man or the Channel Islands

c) **we** must consent in writing to the appointment of any solicitor or counsel who are to act for and on behalf of **you**

d) **you** shall give to **us** immediate notice of any summons or other process served upon **you** which may give rise to proceedings under this endorsement

e) in relation to any appeal counsel has advised there are strong prospects of such appeal succeeding

f) **we** shall be under no liability:

   i) in respect of any prosecutions unless they relate to death caused to any **employee** and arising out of and in the course of employment or engagement of the **employee** by **you** in connection with the business described in the schedule

   ii) where **you** have committed any deliberate or intentional criminal act giving rise to a corporate manslaughter or corporate homicide charge

   iii) in respect of fines or penalties of any kind

   iv) in respect of the defence of any criminal proceedings brought or in an appeal against conviction arising from such proceedings in respect of a breach of the Health and Safety at Work Act 1974 or the Health and Safety at Work Act (Northern Ireland) Order 1978 or any regulations made thereunder

   v) where indemnity for defence costs is available from any other source or is provided by any other insurance or where but for the existence of this endorsement to indemnity would have been provided by such other source or insurance

   vi) in respect of any remedial or publicity orders or any steps required to be taken by such orders

g) where **we** have already indemnified **you** in respect of legal costs or expenses incurred in the defence of any criminal proceedings arising out of the same cause or occurrence which gave rise to the charge of and or investigation connected with corporate manslaughter or corporate homicide under another section of the policy the amount paid under that section will be taken into account in arriving at **our** liability payable under this endorsement.

Limit of liability

We will not pay more than the limit stated in the schedule for any one accident or series of accidents arising out of any one event plus the cost and expenses that **we** have agreed in writing but limited to £5,000,000 including the cost and expenses that **we** have agreed in writing for any one claim arising out of an act of **Terrorism**.

For the purpose of this section an act of **Terrorism** means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

Rights of Recovery

The indemnity granted by this section is deemed to be in accordance with the provisions of any law relating to compulsory insurance of liability to **employees** in the United Kingdom the Isle of Man or the Channel Islands.

However **you** will repay to **us** all sums which **we** have paid but which **we** would not have had an obligation to pay in the absence of the provisions of any such laws relating to compulsory insurance of liability to **employees.**

Your duty to take care

You and any other person to whom this insurance applies will take all reasonable precautions to prevent **injury** disease loss destruction or damage and all property insured under this **policy** will be maintained in good condition.

Interpretation of the Policy

If any word or expression in this **policy** has been given a specific meaning it will be considered as having the same meaning wherever it appears within the **policy**.

Claims procedure

To make a claim please contact the Deacon claims team:

Telephone: 01202 449611
Fax: 01202 449602
Email: claims@deacon.co.uk

Staff are available during office hours and helpline staff are available at all other times. **You** will need to quote **your policy** number that can be found on **your** schedule. **You** will be advised of what **you** need to do and what information will need to be provided.

Your duty

1) On the happening of any event for which a claim is or may be made under this **policy you** will:

   a) notify **us** without unnecessary delay and provide details in writing if requested;
   b) immediately **you** become aware give notice to the police authority in respect of malicious damage, robbery, theft or fraud;
   c) take all practical steps to avoid, minimise or check any **injury** disease loss destruction or damage;
   d) retain unaltered and un-repaired anything in any way connected with the event referred to above for any reasonable period of time required by **us**;
   e) within 30 days of the event at **your** own expense provide to **us** full particulars of the claim together with details of any concurrent insurances;
   f) at **your** own expense supply all information evidence and assistance as **we** may reasonably require;
   g) notify **us** immediately **you** become aware of or receive any letter, claim, writ, summons and/or process in connection with the event and send **us** all documents unanswered without delay;
   h) give **us** immediate notice on being advised of any impending prosecution, inquest, fatal accident or inquiry in connection with any accident which may be covered under this **policy**.

2) Any claimant under this **policy** will at **our** request and expense take and permit to be taken all necessary steps for enforcing rights against any other party in **your** name before or after any payment is made by **us**.

3) In the event of **us** making a payment in settlement of a claim for damage under this **policy** and **you** receiving a payment from another party in respect of the same claim **you** will refund to **us** a proportion of the payment **we** have made equal to the amount received from the other party.

Our rights

1) On the happening of an event in respect of which a claim is or may be made **we** and any person authorised by **us** may take the following action without incurring any liability or diminishing any of **our** rights under this **policy**:

   a) enter take or keep possession of the premises where the event referred to above has occurred;
   b) take possession of or require to be delivered to **us** any property insured;
   c) deal with any property insured for all reasonable purposes and in any reasonable manner.

2) **We** will be entitled to take over and conduct in **your** name the defence or settlement of any claim or to prosecute in **your** name for **our** benefit any claim for indemnity or damage or otherwise. **We** will have full discretion in the conduct of any proceedings and in the settlement of any claim.

3) If any property is to be reinstated or replaced by **us you** will at **your** own expense provide any plans documents books and information that **we** may reasonably require. **We** will not be bound to reinstate exactly but only as circumstances permit and in a reasonably sufficient manner.

4) **You** may not relinquish possession or handover or give up the rights to any property to **us** irrespective of whether or not **we** have taken possession of the property.

5) No admission offer promise payment or indemnity may be made or given by **you** or on **our** behalf to any third party without **our** written consent.

6) In respect of any claim or series of claims for which this **policy** indemnifies **you** against **your** legal liability **we** may pay to **you** at any time the amount of the limit of liability after deduction of any sum(s) already paid as compensation or any lesser amount for which such claims can be settled

   If any such payment is made **we** will relinquish the conduct and control of and be under no further liability in connection with the claim(s) except for the payment of costs and expenses recoverable or incurred prior to the date of such payment.

Fraud

All benefit under this **policy** will be forfeited if any claim is:

a) in any respect fraudulent or exaggerated or if fraudulent means are used by **you** or anyone acting on **your** behalf to obtain any benefit;

b) any damage is caused wilfully by **you** or with **your** connivance.

Other insurance

If at the time of a claim there is any other insurance covering the same liability loss or damage **we** will not be liable under this **policy** for more than **our** rateable proportion.

Contracts (Rights of Third Parties) Act 1999

In the event of conflict between this condition and any other provisions of the **policy** this condition will take precedence.

1) This **policy** is a contract solely between the **insurer** and the **insured** or **insured's** specifically named in the **policy** schedule it is not intended to confer any contractual rights on any other person (by which term this condition shall include the plural bodies corporate and unincorporated associations) unless the **insurer** has agreed thereto in writing the **insurer** may at its discretion and on such terms as it shall specify grant to the **insured** in writing the power to designate a person who shall then be entitled to such contractual rights under the **policy** as may be specified and subject to the due observance of the terms and conditions of the **policy** and of this condition.

2) Where the **insurer** has granted rights to a person other than the **insured** named in the **policy** schedule or where the **insurer** has granted to the **insured** named in the schedule the power to designate any other person as being entitled to contractual rights under this **policy** such contractual rights shall be subject to the following additional conditions each of which shall be a condition precedent to the liability of the **insurer** to grant any indemnity or make any payment to that person under this **policy**:

   a) at the time when such contractual rights were granted to such person the **policy** shall have been in full force and no circumstances shall have occurred which whether known or unknown to the **insurer** would entitle the **insurer** to rescind cancel or avoid the **policy**;

   b) the **insured** named in the schedule shall not be or have been in breach of any term or condition of the **policy**;

   c) the **insured** named in the schedule shall have complied fully with any procedures which may be from time to time issued by the **insurer** for the recording and notification of particulars of persons granted such contractual rights under the **policy**;

   d) up to and at the time of the occurrence of any event which is the subject of any claim under this **policy** the person claiming contractual rights under this **policy** shall have observed fully the terms and conditions of the **policy** in so far as they shall be reasonably capable of being applied to such person and thereafter shall comply with all the terms of the **policy** relating to the management of claims as if they were named as the **insured** in the **policy** schedule.

3) Any right to the **insurer** to rescind, cancel or vary this **policy** shall not be subject to or diminished by the rights of any person who is granted contractual rights under the **policy**.

   Notice of the exercise of such rights (namely to rescind avoid cancel or vary this **policy**) by the **insurer** shall be effective if given in writing and sent to the last known address of the **insured** first named in the **policy** schedule. Such notice shall be deemed to be notice to any person having contractual rights under the **policy**.

4) The maximum limit placed on any benefit sum insured or indemnity payable under this **policy** shall not be increased by the number of persons entitled to exercise contractual rights under the **policy** and the **insurer's** liability shall not thereby be increased above the amount that would have been payable if the **insured** first named in the **policy** schedule was the only person entitled to contractual rights under the **policy**.

5) The receipt of any person appearing to be entitled to claim under the **policy** shall be effective as a receipt on behalf of all such persons who may be entitled to claim under the **policy** the **insurer** shall not be under any duty to inquire into the relative priorities of any persons claiming to be entitled to any benefit or indemnity under the **policy**.

6) All other terms and exclusions of the **policy** shall remain in full force and effect.

Cancellation

This **policy** may be cancelled:

a) by **you** writing to **your** broker or **us** within 14 (fourteen) days of inception of this **policy** or receipt of the **policy** documentation (the "cooling off period"). **You** will be entitled to a full refund of premium provided that no claim has been made during the current **period of insurance**;

b) by **us** giving **you** 14 days notice in writing to **your** last known address.

If the **policy** is cancelled by **us you** will become entitled to a return of premium corresponding to the unexpired **period of insurance** for which a premium has been paid provided that no claim has been made during the current **period of insurance**.

Material facts definition

A material fact is one which is likely to influence **our** assessment and acceptance of a risk if **you** are in any doubt as to whether a fact is material and may change or influence **our** assessment of **your** insurance **you** should disclose it to **us**.

Material facts condition

Any material information provided by **you** to **us** is to the best of **your** knowledge and belief deemed to be true. In the event of misrepresentation misdescription or non-disclosure of any such information this **policy** will be voidable.

Change in circumstances

If the circumstances under which this insurance was entered into are materially altered without **our** consent this **policy** will be voidable.

Arbitration

Where **we** have accepted a claim and there is a disagreement over the amount to be paid the dispute must be referred to an arbitrator to be agreed between **you** and **us** in accordance with the law at the time when this happens a decision must be made before **you** can take any legal action against **us**.

Your duty to comply with the policy terms

It is a requirement of this insurance that **you** observe and fulfil and obey the terms of this **policy** if **we** are to be held liable to make any payment.

Survey and Risk Improvement Condition

If this **policy** has been issued or renewed subject to the **insurer** completing a survey or surveys of the **building(s)** or of any other location(s) as specified by the **insurer**, then pending completion of such survey(s) insurance cover is provided by the **insurer** on the terms, conditions, provisions, exclusions and limits as specified in the **policy** and in the sections of the **policy**

In the event that a survey should show that a risk or any part of it is not satisfactory in the opinion of the **insurer**, then the **insurer** reserves the right to either alter the terms and conditions of insurance cover or to suspend or withdraw insurance cover from the date insurance cover was incepted or renewed or for any other period specified by the **insurer**

It is a condition precedent to the liability of the **insurer** that the **insured** must comply with all survey risk improvements required by the **insurer** within completion time scales specified by the **insurer**

In the event that a risk improvement is not completed or risk improvement procedures are not introduced within the completion time scales specified by the **insurer**, then the **insurer** reserves the right to either continue insurance cover subject to alteration of the terms and conditions of such insurance cover, or to suspend or withdraw insurance cover effective

A. from the date insurance cover was incepted or renewed, or

B. from the expiry of any time period specified by the **insurer** for completion/introduction of the required survey risk improvements or

C. for any other period specified by the **insurer**

If the terms or conditions of insurance cover are amended by the **insurer**, then the **insured** will have fourteen (14) days to accept or reject the revised basis of insurance cover

If the **insured** elect to reject the revised basis of insurance cover, then the **insured** may be entitled to a refund of premium (subject to an administration charge) provided that no claim has been made during the current period of insurance

If the **insurer** exercises the right to suspend or withdraw insurance cover, then the **insured** may be entitled to a refund of premium in respect of such period that insurance cover is suspended or for any period beyond the effective date from which insurance cover is withdrawn, provided that no claim has been made during the current period of insurance

Except in so far as they are expressly varied by this condition, all of the terms, conditions, provisions, exclusions and limits of the **policy** and of the sections of the **policy** shall continue to apply until the **insurer** advises otherwise

To the extent that this condition conflicts with any other cancellation condition, this condition shall prevail.

This Policy does not cover

Radioactive Contamination and Nuclear Assemblies Exclusion

We *will not pay for:*

1) *loss or destruction of or damage to any property whatsoever or any loss or expenses whatsoever resulting or arising there from or any consequential loss;*

2) *any legal liability of whatsoever nature;*

directly or indirectly caused by or contributed to by or arising from:

a) *ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel;*
b) *the radioactive toxic explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof.*

War Exclusion

We *will not pay for any loss or damage or liability directly or indirectly occasioned by happening through or in consequence of war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection, military or usurped power or confiscation or nationalisation or requisition or destruction of or damage to property by or under the order of any government or public or local authority.*

Electronic Data Exclusion Clause

We *will not pay for:*

1) *loss or destruction of or damage to any property whatsoever or any loss or expenses whatsoever resulting or arising there from or any consequential loss;*

2) *any legal liability of whatsoever nature:*

directly or indirectly caused by or contributed to by or arising from:

a) *computer viruses, erasure or corruption of electronic data;*
b) *the failure of any equipment to recognise correctly the date or change of data;*

For the purposes of this exclusion 'computer virus' means a corrupting instruction from an unauthorised source that propagates itself by a computer system or network.

Existing Damage

We *will not pay for loss or damage occurring before cover starts or arising from an event before cover starts.*

English Law

The parties are free to choose the law applicable to this Insurance Contract. Unless specifically agreed to the contrary this insurance shall be subject to English Law.

Data Protection Act

It is understood by the **insured** that any information provided to **us** regarding **you** will be processed by **us**, in compliance with the provisions of the data protection act 1998, for the purpose of providing such information to third parties.

In order to prevent and detect fraud **we** may at any time:

1) Share information about **you** with other organisations and public bodies including the police;

2) Check and/or file **your** details with fraud prevention agencies and databases, and if **you** provide **us** with false or inaccurate information and **we** suspect fraud, **we** will record this. **We** and other organisations may also search these agencies and databases to:

a) Help make decisions about the provision and administration of insurance, credit and credit related services for **you** and members of **your** household;

b) Trace debtors or beneficiaries, recover debt, prevent fraud and to manage **your** insurance policies;

c) Check **your** identity to prevent money laundering, unless **you** furnish **us** with other satisfactory proof of identity;

3) Undertake credit searches and additional fraud searches.

We can supply, on request, further details of the databases **we** access or contribute to.

Employers Liability Tracing Office

Certain information relating to **your** insurance **policy** including, without limitation, the **policy** number(s), employers' names and addresses (including subsidiaries and any relevant changes of name), coverage dates, employer's reference numbers provided by Her Majesty's Revenue and Customs and Companies House Reference Numbers (if relevant), will be provided to the Employers' Liability Tracing Office, (the ELTO) and added to an electronic database, (the Database).

This information will be made available in a specified and readily accessible form as required by the [Employers' Liability Insurance: Disclosure By Insurers Instrument 2010]. This information will be subject to regular periodic updating and certification and will be audited on an annual basis.

The Database will assist individual consumer claimants who have suffered an employment related injury or disease arising out of their course of employment in the UK for employers carrying on, or who carried on, business in the UK and who are covered by the employers' liability insurance of their employers, (the Claimants):

a) to identify which insurer (or insurers) was (or were) providing employers' liability cover during the relevant periods of employment; and
b) to identify the relevant employers' liability insurance policies.

The Database will be managed by the ELTO.

The Database and the data stored on it may be accessed and used by the Claimants, their appointed representatives, insurers with potential liability for UK commercial lines employers' liability insurance cover and any other persons or entities permitted by law.

By entering into this insurance policy you will be deemed to specifically consent to the use of your insurance policy data in this way and for these purposes.

(In all communications the Deacon Policy number and Insurer Reference should be quoted).

Any enquiry or complaint should be addressed in the first instance to **your broker** who arranged this policy for **you**.

Please contact Deacon, 3rd Floor, 100 Holdenhurst Road, Bournemouth, BH8 8AQ:
Telephone: 01202 310101
Fax: 01202 310120
Email: info@deacon.co.uk

Your complaint will be acknowledged within 5 business days.

Within 4 weeks you will receive either a final response or an explanation of why the complaint is not yet in a position to be resolved, with an indication of when a final response is expected to be issued.

If compensation or redress is felt to be appropriate, details of this will be provided to you, if it is felt that your complaint is not justified you will be provided with full reasons for this decision.

If you are unsatisfied with Deacon's decision or the time taken to resolve your complaint then you should make this known to them and they will forward the complaint to Zennor Ltd for attention of:

Chief Risk Officer, Zennor Ltd, The Walbrook Building, 25 Walbrook, London, EC4N 8AW
Telephone: 0207 283 0070

Zennor Ltd are the agents of Covea Insurance plc and are authorised and regulated by the Financial Conduct Authority.

Alternatively, **you** can make a complaint directly to the insurer Covea Insurance plc.

Quality Assurance, Covea Insurance plc, Norman Place, Reading RG1 8DA
Telephone: 0844 902 1000
Via website: www.coveainsurance.co.uk

Full details of the Covea Insurance Internal Complaints Procedure are detailed in the leaflet 'Complaints Procedure' which is available on request or may be downloaded via the Covea Insurance website.

If **you** should remain dissatisfied, once Covea Insurance plc has had the opportunity to resolve your complaint, **you** may be eligible to refer **your** complaint to the Financial Ombudsman Service (FOS). For further details they can be contacted at Exchange Tower, London, E14 9SR. www.financial-ombudsman.org.uk.

Financial Services Compensation Scheme

Covea Insurance plc is covered by the Financial Services Compensation Scheme (FSCS). You may be entitled to receive compensation from the scheme should the insurer be unable to meet its liabilities. Information can be obtained on request or by visiting the Financial Services Compensation Scheme website at www.fscs.org.uk

Covea Insurance plc is incorporated in England and Wales Company Number 613259 and is authorised by the Prudential Regulation Authority and regulated by the Financial Conduct Authority and the Prudential Regulation Authority firm reference number 202277. Covea Insurance plc is a member of the Association of British Insurers.

Notes